

ATTACHMENT 3**Other Than Full and Open Justification (Applicable to Requirements <\$250K)**

FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g. urgency, exclusive licensing agreements, brand-name or industrial mobilization). This justification explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and requirement is not expected to exceed the simplified acquisition threshold.

1. Description of supplies or services required to meet agency needs.

Provide a description of the supplies or services required, to include intended use, and the expected delivery date/period of performance.

Capstan A-5 card and motor require grooming and trouble shooting. If the system is not repaired, the ship will be unable to perform unassisted mooring operations in the event that tug boats are not available. Additionally, if heavy weather is experienced, the capstan is often used to tighten mooring lines. This capability will not be available if the system is not repaired.

2. Identification of the vendor source or the brand name to be solicited.

Provide name, address, POC, phone number & email address.

Ultra Maritime
95 Horseblock Rd, Unit 2
Yaphank, New York 11980
Maria Wilpiseski, (631)345-6200 x 206, maria.wilpiseski@umaritime.com

3. If item is not available directly from manufacturer, provide authorized reseller's contact info.

Provide name, address, POC, phone number & email address of reseller when a manufacturer distributes via authorized distributor/reseller. If none, enter N/A.

4. Supporting rationale. The determination for use of Other Than Full and Open Competition is based on the following (Check all applicable boxes):
☐

Brand Name - This particular brand name is essential to the requirement and market research indicates similar products do not meet or cannot be modified to meet agency needs. With a brand name product, the item may be available from numerous dealers/distributors.

Identify brand name item(s) or feature(s) & describe how the particular brand name item(s) or feature(s) is essential to the Government's requirements. Provide details on mission impact if the requirement is not solicited for the brand name. Explain why a "brand name or equal" description cannot be used (FAR 11.104). Describe why other companies' similar product(s) do not meet, or cannot be modified to meet, the agency's needs (FAR 11.105).

☐ **Compatibility to existing systems or equipment.** The required supplies or service must be compatible in all aspects (form, fit, and function) with existing systems or equipment and the source is uniquely qualified to meet the requirement.

Describe the current system or equipment and the manner in which the new item/service must coordinate, connect, or interface with the existing system or equipment. Describe how other companies' similar product(s) do not meet, or cannot be modified to meet, the agency's needs.

☒ **OEM Exclusive Licensing Agreement.** The item or service is only available from the Original Equipment Manufacturer (OEM) or there are authorized distributors/resellers or technical representative for the OEM.

☐ **Restrictive Rights.** The source has established propriety rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

Explain what rights are restricted, why the restrictive rights make the required item or service available from only one source and why another company could not satisfy the Government's need.

☒ **Sole Source.** Only one source is capable.

Identify any other reason not identified above as to why only the single source is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized. Provide details on mission impact if the requirement is not solicited from the single source.

Ultra Maritime is the Original Equipment Manufacturer (OEM) for the Capstan Control Software. The software is proprietary to Ultra Maritime and they are the only vendor with capability to groom and troubleshoot the capstan control components and software.

☒ **Urgent Acquisition.** Supplies or services are of such unusual and compelling urgency the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits quotes or proposals.

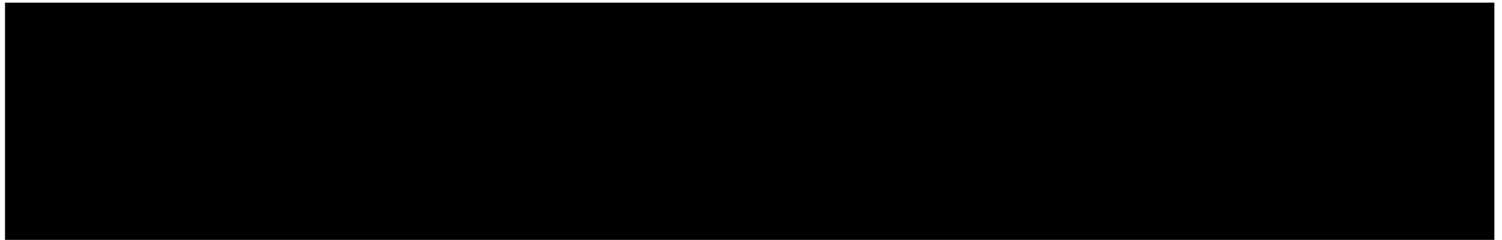
Date on which requirement was first identified: 4/14/25

Required delivery date: 5/30/25

Explanation of why delivery by that date is required and describe the compelling nature of the urgency and how the Government will be seriously injured if this requirements is not purchased immediately.

Capstan A-5 card and motor require grooming and trouble shooting. If the system is not groom/repared, the ship will be unable to perform unassisted mooring operations in the event that tug boats are not available. Additionally, if heavy weather is experienced, the capstan is often used to tighten mooring lines. This capability will not be available if the system is not repaired. This procurement is required to be

to support underway operations.

Technical/Requirements Certification:**C400 Procurement Contracting Officer Approval:****C400 Approval Authority One Level Above Procurement Contracting Officer:**

I certify that this justification meets requirements for other than full and open competition.

**One Level Above Contracting
Officer Signature:**

RICH.PAUL.A.12286
06550

Digitally signed by
RICH.PAUL.A.1228606550
Date: 2025.04.16 13:59:16 -04'00'

Date: 4/16/25

BRAND NAME REMINDERS:

**When a contract action will include brand-name specifications or is sole source, the contracting officer shall include this justification with the solicitation the documentation required by FAR 13.106-1(b), redacted as necessary.*

***For Federal Supply Schedule (FSS) orders, when a requirement contains brand-name specifications, the contracting officer shall post the RFQ on e-Buy as required by FAR 8.405-6.*